

The appeal, therefore could not be said, in such a case, to be continuation of a non-existing thing.

Admissibility of the document cannot be assailed in appeal.- Certified copy of the registered sale deed, dated 26th September, 1927, was admissible in evidence and the admissibility of the document could not have been assailed in appeal.

46. Execution of decisions or orders of the Tribunal.- The Tribunal may transmit any decision or order made by it to a civil Court having local jurisdiction and such civil court shall execute the decision or order as if were a decree made by that court.

Comment

Section 46 provides that the order of the Tribunal shall be a decree of the civil court and shall be executed accordingly.

47. Report of the Central Government.- The Tribunal shall present annually a report to the Central Government of all its proceedings under this Chapter.

Comment.

Section 47 provides that the Tribunal shall make an annual report to the Central Government of its proceedings.

48. Power of the Tribunal to make regulations. – (1) The Tribunal may, with the previous approval of the Central Government, make regulations consistence with this Act and rules generally to regulate its procedure for the effective discharge of its functions under this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters namely,

- (a) the terms and conditions of service of the officers and employees of the Tribunal;
- (b) the award of costs by the Tribunal in any proceedings before it;
- (c) the reference of any question to a member of the Tribunal or any other person appointed by the Tribunal, for report after holding a local inquiry;

- (d) the right of audience before the Tribunal, provided that any party shall be entitled to be heard in person, or by a representative duly authorized in writing, or by a legal practitioner.
- (e) The disposal by the Tribunal of any proceedings before it, notwithstanding that in the course thereof there has been a change in the persons sitting as members of the Tribunal;
- (f) A scale of fees for and in connection with the proceedings before the Tribunal.

Comment

Section 48 empowers the Tribunal to make regulations with the previous approval of the Central Government. Such regulations may inter alia be made in regard to the award of costs reference of any question to a member or officer of the Tribunal for report, the right of audience, the scale of fees, etc.

CHAPTER VIII

Carriage of Passengers

49 Exhibition of certain timings and Tables of fares at situations.-

(i) Every railway administration shall cause to be pasted in a conspicuous and accessible place at every station in Hindi and English and also in the regional language commonly in use in the area where the station is situated,-

(i) a table of timings of arrival and departure of trains which carry passengers and stop at that station, and

(ii) list of fares from such station to such other stations as it may consider necessary.

(2) At every station where tickets are issued to passengers, a copy of fares at every station.

50. Supply of tickets on payment of fare.- (1) Any person desirous of traveling on a railway shall, upon payment of the fare, be supplied with a ticket by a railway servant or an agent authorized in this behalf and such ticket shall contain the following particulars, namely :-

- (i) the date of issue;